

FEDERAL MARITIME COMMISSION

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FEDERAL MARITIME COMMISSION

DOCKET NO. 14-05

**HUNTINGTON INTERNATIONAL, INC., JC HORIZON LTD., AND JUDY LEE –
POSSIBLE VIOLATIONS OF
SECTIONS 10(a)(1) AND 19 OF THE SHIPPING ACT OF 1984**

JOINT STATUS REPORT

Pursuant to the Initial Order issued by the Administrative Law Judge (ALJ) on June 6, 2014, the Bureau of Enforcement (BOE) and Respondents JC Horizon Ltd. (JC Horizon) and Judy Lee (jointly referred to as Respondents), through counsel, submit this Joint Status Report. Huntington International, Inc. has not filed or served an answer or otherwise responded to the Commission's Order of Investigation and Hearing. Respondents' Answer was timely filed and served on July 7, 2014. Consequently, the dates set forth in the schedule proposed herein emanate from that date.

Counsel have conferred and agreed upon the matters set forth herein:

The Initial Order directs the parties to contact the Commission's Consumer Affairs and Dispute Resolution Service (CADRS) to participate in a mandatory preliminary conference to discuss whether the matter may be resolved through mediation pursuant to Rule 64 of the Commission's Rules of Practice and Procedure, 46 C.F.R. §502.64. Rule 64 does not apply to Commission enforcement proceedings.¹ The parties have not agreed to engage in mediation.

The parties have agreed upon the following schedule:

¹ See Final Rule in FMC Docket 11-05, 77 Fed Reg 61519, 61522 (Oct 10, 2012)

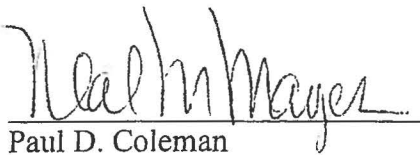
- July 28, 2014 – submission of initial joint status report

- July 30, 2014 – BOE to serve discovery
- August 1, 2014 – BOE to respond to Respondents' counterclaim
- August 6, 2014 – BOE to respond to Respondents' discovery
- August 18, 2014 – BOE to serve its privilege log
- August 29, 2014 – Respondents to respond to BOE discovery
- September 9, 2014 – Respondents to serve their privilege log
- September 15, 2014 – Additional discovery to be served
- October 1, 2014 – Disclosure of expert witnesses with written report or summary of testimony
- October 15, 2014 – Responses to additional discovery to be served
- October 27 – November 7, 2014 – Depositions of non expert witnesses
- November 17 – 21, 2014 – Depositions of expert witnesses
- December 4, 2014 – Discovery closed
- December 22, 2014 – Rule 95 statements to be filed
- January 21, 2015 – BOE Proposed Findings of Fact and Conclusions of Law, Brief, and Appendix to be filed
- February 20, 2015 – Respondents' Proposed Findings of Fact and Conclusions of Law, Brief, and Appendix to be filed
- March 12, 2015 – BOE to file a reply brief, if any
- June 5, 2015 – Initial Decision

The above proposed schedule is presented with the mutual understanding that it may

subsequently require leave to amend in order to accommodate: (a) motions to compel discovery and the Administrative Law Judge's rulings on the motions and responses thereto; (b) motions for summary judgment and other dispositive motions; (c) negotiation of stipulations on discovery and factual issues; and (d) other possible unanticipated events.

Respectfully submitted,



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